

THIRD EDITION

AN INTRODUCTION TO LAW



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CLASSIFICATION OF THE LAW

1 INTRODUCTION

The form which any classification takes will depend on the principles of categorisation that one uses. In Chapter 7 positive law, for example, was subdivided into statute law, customary law and case-law, with the various sources of law being the basis of the categorisation. Legal norms may also be subdivided according to their mode of operation or according to the body which laid them down linked to their sphere of operation. In South Africa there is also a traditional method of categorising legal norms which is based partly on principles of logical distinction and partly on tradition. Most attention will be given to the latter method of categorisation.

In addition to the fact that subdivision and classification are typically theoretical activities, they also help the beginner to get a comprehensive overview of the law as a field of study — this applies especially to the traditional subdivision of South African law. The classification of the law is thus an appropriate subject with which to conclude this book; not only is it based on subdivisions and classifications which have already been discussed in previous chapters (and thus brings together this knowledge in a systematic way) but it also gives a kind of preview to what lies ahead for the beginner in terms of more specialised study.

2 CLASSIFICATION ACCORDING TO MODE OF OPERATION

Provisions of the (positive) law may bind subjects in one of two ways:

- ☐ *Regulative law* applies only if a subject does not make other arrangements him- or herself. For example, the rules of the law of intestate succession are regulative. If you die your estate will devolve upon your heirs in terms of these rules unless you have died testate, and thus have made your own arrangements in a will during your lifetime.
- ☐ *Coercive law*, on the other hand, applies under all circumstances and the subject cannot substitute his or her own arrangements.

3 CLASSIFICATION ACCORDING TO ISSUING BODY AND SPHERE OF VALIDITY

It is usually assumed that all law comes only from the government in the state. But if you see the law broadly enough as an instrument for social organisation (and are

prepared to accept that one can experience *security-in-office*¹ in more than just the state context), then you discover that there is also a distinctive internal law in other social institutions. Churches, for example, have their own church (canon) laws, clubs their own rules, companies their own internal regulations — and there are many more such examples. These laws/rules/provisions display exactly the same characteristics as far as their nature, structure and effect are concerned as the legal norms or rules applicable in the state. The only difference is that they do not derive from a state lawmaker (the legislature, a court, etc). It is thus quite correct to draw a distinction between *state law* and *non-state law*.

There is also an intermediate category. In many social institutions private organisations (or their representatives) and state organs (or their representatives) work together to lay down law for that institution. Some of the legal rules laid down for a university (for example, its statutes and regulations) are striking instances of this. LJ du Plessis² calls this category *corporate law*.

4 THE TRADITIONAL CLASSIFICATION

The traditional division of the law proceeds from the basic distinction between public law and private law, which has been dealt with more fully already.³

- ❑ In public law the *government* (that is those in authority in the state) act with *power* or *authority*. Public norms thus regulate the relationship between the *state as bearer of "political" or state authority* and the *state's subjects as subservient to that authority*. They also regulate the *mutual relationship* between *state or government bodies* and *states* among themselves.
- ❑ In private law legal subjects do not act with *state authority* and the *relationships between legal subjects* are regulated *without* one legal subject being able to resort to *governmental or "political" authority* against the other. State bodies may also institute actions in private law without having any claim to government authority.

4 1 PUBLIC LAW

4 1 1 CONSTITUTIONAL LAW Constitutional law is that subdivision of public law which says *what the state is*: how it is constituted, what the origin and scope of state authority is, what the relationship is between the various state bodies, what their powers are, who the office bearers in the state are (and may be), etc. *Constitutional matters* are typically questions of constitutional law. What is the structure of the state? What form of state is preferred? Who may participate in general elections?

¹ See inter alia **Ch 7 2** above.

² *Inleiding tot die Algemene Regsleer of Jurisprudence* (1943) 16–22.

³ See **Ch 4 2** above.